



Bill Number: H.B. 2320

Mesnard Floor Amendment

Reference to: House engrossed bill

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Specifies that the requirement to hire an independent municipal advisor before calling an election only applies to elections relating to the issuance of school district bonds.
2. Specifies that a school district governing board must hire the independent municipal advisor as prescribed on a contingency fee basis.
3. Determines that a school district is not required to hire an independent municipal advisor if the school district is unable, after reasonable effort, to hire a qualified independent municipal advisor on a contingency fee basis.
4. Stipulates that an independent municipal advisor must receive compensation from the school district only if voters authorize the issuance of school district bonds in the election for which the independent municipal advisor provides advice and assistance.

MESNARD FLOOR AMENDMENT
SENATE AMENDMENTS TO H.B. 2320
(Reference to House engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 15, chapter 4, article 5, Arizona Revised
3 Statutes, is amended by adding section 15-492, to read:

4 15-492. Independent municipal advisors; duties; prohibition;
5 exemption

6 A. BEFORE CALLING AN ELECTION [FOR THE PURPOSE OF DECIDING WHETHER
7 BONDS OF THE SCHOOL DISTRICT SHALL BE ISSUED AND SOLD] PURSUANT TO THIS
8 ARTICLE, THE GOVERNING BOARD OF A SCHOOL DISTRICT SHALL HIRE [, ON A
9 CONTINGENCY FEE BASIS.] AN INDEPENDENT MUNICIPAL ADVISOR WHO IS REGISTERED
10 AND IN GOOD STANDING WITH THE SECURITIES AND EXCHANGE COMMISSION, OR ITS
11 SUCCESSOR, TO ADVISE AND ASSIST THE SCHOOL DISTRICT GOVERNING BOARD AND
12 THE SCHOOL DISTRICT WITH BOTH:

13 1. THE ELECTION.

14 2. IF A MAJORITY OF VOTES CAST AT THE BOND ELECTION FAVORS ISSUING
15 THE BONDS, EACH BOND ISSUE AUTHORIZED BY THE ELECTION.

16 B. AN INDEPENDENT MUNICIPAL ADVISOR WHO IS HIRED PURSUANT TO
17 SUBSECTION A OF THIS SECTION SHALL:

18 1. ADVISE THE SCHOOL DISTRICT GOVERNING BOARD AND THE SCHOOL
19 DISTRICT ON ALL ASPECTS OF ISSUING THE BONDS TO ASSIST THE SCHOOL DISTRICT
20 IN ACHIEVING THE MOST EFFECTIVE COST OF BORROWING, INCLUDING:

21 (a) DETERMINING THE REPAYMENT STRUCTURE OF THE BONDS.

22 (b) OBTAINING RATINGS, IF NECESSARY, ON THE BONDS.

23 (c) HIRING OTHER PROFESSIONALS NECESSARY TO SELL AND ISSUE THE
24 BONDS.

25 (d) ASSISTING IN ANY OTHER MATTER THAT IS RELATED TO THE ISSUANCE
26 OF THE BONDS.

27 2. ASSIST THE SCHOOL DISTRICT GOVERNING BOARD AND THE SCHOOL
28 DISTRICT IN PREPARING THE INFORMATIONAL PAMPHLET REQUIRED PURSUANT TO
29 TITLE 35.

1 3. ACT IN THE BEST INTERESTS OF THE SCHOOL DISTRICT.

2 [4. RECEIVE COMPENSATION FROM THE SCHOOL DISTRICT ONLY IF VOTERS
3 AUTHORIZE THE SCHOOL DISTRICT TO ISSUE BONDS IN THE ELECTION FOR WHICH THE
4 INDEPENDENT MUNICIPAL ADVISOR PROVIDES ADVICE AND ASSISTANCE.]

5 C. AN INDEPENDENT MUNICIPAL ADVISOR WHO IS HIRED PURSUANT TO
6 SUBSECTION A OF THIS SECTION MAY NOT:

7 1. COLLUDE IN ADVISING ON THE SELECTION OF OTHER PROFESSIONALS TO
8 ASSIST THE SCHOOL DISTRICT.

9 2. PURCHASE OR UNDERWRITE ANY ISSUE OF SCHOOL DISTRICT BONDS, IF
10 THE PERSON SERVED AS THE INDEPENDENT MUNICIPAL ADVISOR FOR THAT ISSUE OF
11 BONDS.

12 [D. A SCHOOL DISTRICT IS NOT REQUIRED TO HIRE AN INDEPENDENT
13 MUNICIPAL ADVISOR PURSUANT TO THIS SECTION IF THE SCHOOL DISTRICT IS
14 UNABLE AFTER REASONABLE EFFORT TO HIRE A QUALIFIED INDEPENDENT MUNICIPAL
15 ADVISOR ON A CONTINGENCY FEE BASIS.]

16 Enroll and engross to conform

17 Amend title to conform

J.D. MESNARD

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C: VS

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